

Court No. - 1

Case :- WRIT - C No. - 6486 of 2020

Petitioner :- M/S Hind Agro Pvt Ltd

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed, put up this matter as fresh on 27.02.2020.

Order Date :- 24.2.2020

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(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 32

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Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Vipin Chandra Dixit, J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 10.02.2020 No. 911 passed by the Executive Engineer, Electricity Distribution Division IIIrd, Dakshinanchal Vidyut Vitran Nigam Ltd. Lal Diggi Aligarh (Annexure No. 25 of the writ petition)."

Heard learned counsel for the petitioner, Sri S.K. Tripathi, learned Counsel holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

At the very outset, learned counsel for the electricity department submitted that against the impugned order the petitioner has an alternative remedy to file a complaint before the Consumer Grievance Redressal Forum as provided under Clause 7.10 of the U.P. Electricity Supply Code, 2005 for redressal of his grievance. But, instead of availing the said remedy the petitioner has chosen to file the present writ petition, which is not maintainable.

Learned counsel for the petitioner has not been able to rebut the contention so made by the

learned counsel for the Electricity Department.

In view of the above, we are not inclined to entertain this writ petition for the reasons that there is availability of statutory remedy. However, in case, the petitioner approaches the Consumer Grievance Redressal Forum for redressal of his grievance within two weeks from today by filing a complaint under clause 7.10 of U.P Electricity Supply, Code 2005, the said complaint shall be considered and decided by the said forum in accordance with law preferably within four weeks from the date of receipt of a certified copy of this order by a reasoned and speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the Forum concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner fails to approach the Forum concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

We make it clear that we have not entered into the merits of the case and the same shall be decided by the authority concerned on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 27.2.2020

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